

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ANDRE POINTER

Index No. 152082/2016

Plaintiffs

AMENDED COMPLAINT

-against-

CITY OF NEW YORK , P.O. CHRISTINE ROSADO,
P.O. RAMON MALDONADO, P.O. HUI
Defendants

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PRELIMINARY STATEMENT

1. The defendants are City of New York Police Department and two New York City police officer who falsely handcuffed the plaintiff ANDRE POINTER, who was harassed and humiliated without any justification whatsoever. This lawsuit seeks compensatory and punitive damages from the defendant law enforcement officers for this false arrest and detention that caused the plaintiff to suffer anxiety, humiliation and emotional distress.

II PARTIES

2. Plaintiff is an adult and resides in New York County.
3. Defendant is a municipal corporation with offices located in the County of New York, and employs police officers who act on behalf of said municipality in furtherance of their duties.
4. The defendant P.O. Christine Rosado is a police officer and employed by the City of New York.

5. The defendant P.O Ramon Maldonado, is a police officer, employed by the defendant City of New York.

6. The defendant P.O. Hui, is a police officer, employed by the defendant City of New York.

The defendant City of New York has established and maintains the New York City Police Department as a constituent department or agency.

III FACTUAL ALLEGATIONS

6. That on December 12, 2014, ANDRE POINTER, was lawfully in subway station located on 125th Street in New York City.

7. That the defendants without probable cause or any legal justification harassed and then handcuffed the plaintiff, ANDRE POINTER, although he had committed no crime and was merely waiting for his fiancé at the subway station .

8. Thereafter, the defendants did cause emotional injury to the plaintiff while in their custody

9. The Defendants handcuffed the Plaintiff without any reason other than to harass and intimidate the Plaintiff.

10. The plaintiff has been emotionally harmed by the Defendants' actions.

11. The Defendants' actions were taken under color of state law.

12. The Defendants' actions were reckless and taken in deliberate and callous indifference to

Plaintiff's rights.

IV
CAUSES OF ACTION

13. Defendants' actions violated Plaintiff's rights to be free from being handcuffed and restrained without any cause under the common law of New York and right to be free from unreasonable seizure under the Fourth Amendment to the United States Constitution.

V
CLAIM FOR RELIEF AND JURY TRIAL DEMAND

14. Plaintiff is requesting compensatory and punitive damages as well as his costs and attorney's fees.

15. Plaintiff demands trial by jury.

Dated: June 28, 2016
Newburgh, New York

Yours, Etc.

Andrew Bersin Esq.
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